



LAND LAWS

UNIT V — ALIENATION, SCHEDULED AREAS & DISPUTE RESOLUTION

Osmania University | LLB (3-YDC) | 4th Semester | Paper IV
Comprehensive Exam Preparation Notes · Target: 75+ Marks

Prepared by LawSticker AI — lawsticker-ai.com



UNIT V — OVERVIEW & STUDY MAP

✓ What IS in this Unit (Scope)

- Alienation restrictions — laws regulating transfer and alienation of land
- Scheduled Areas Land Transfer Regulation 1959 (SALTR) — prohibition on tribal land transfer to non-tribals
- Telangana Assigned Lands (Prohibition of Transfers) Act, 1977 — assigned land, illegal transfers, resumption
- AP Land Grabbing (Prohibition) Act, 1982 — land grabbers, Special Court, effectiveness
- Dispute Resolution — Special Tribunals and Courts in land disputes
- Board of Revenue — composition, jurisdiction, powers, right to refer
- Settlement Officer — duties and functions

✗ What is NOT in this Unit

- Ceiling on land holdings (Ceiling Act 1973) — Unit IV
- Forest Rights Act 2006 — Unit IV
- LARR 2013 acquisition procedure — Unit III
- Zamindari/Ryotwari — Unit II
- Eminent Domain / Bona Vacantia / Pattas — Unit I

★ Predicted High-Probability Questions — 2026 Exam

- Part A: Assigned Lands (appeared 2025, 2018)
- Part A: Land Grabber (appeared 2021)
- Part A: Sada Bainama — Unit II overlap but relevant to alienation
- Part B: AP Land Grabbing (Prohibition) Act — effectiveness (appeared 2025, 2021, 2020, 2019, 2018 — EVERY year)
- Part B: Board of Revenue — composition, jurisdiction, powers, right to refer (appeared 2022)
- Part B: Settlement Officer — duties and functions (appeared 2022)
- Part B: Tenancy — rights of cultivator, termination of tenancy (appeared 2018 old syllabus)
- Part C: Assigned land transferred — eviction notice validity (appeared 2025, 2021)
- Part C: Government occupying waste land — eviction notice validity (appeared 2025, 2021)
- Part C: Political party occupying government land — land grabbing (appeared 2021)
- Part C: Tenant constructing overhead tank — eviction? (appeared 2022)

Critical Numbers & Provisions — Unit V

- AP Land Grabbing (Prohibition) Act, 1982 — defines 'land grabber', 'land grabbing', Special Court
- Telangana Assigned Lands (Prohibition of Transfers) Act, 1977 — Sections 3, 4, 5
- Section 3, 1977 Act — prohibition on transfer of assigned land
- Section 4, 1977 Act — resumption of illegally transferred assigned land
- Section 5, 1977 Act — penalty for illegal transfer
- SALTR 1959, Regulation 1 — tribal land in Scheduled Area transferred to non-tribal = void
- SALTR 1959, Regulation 2 — government leases of Scheduled Area land — restrictions

- Board of Revenue — highest revenue court; constituted under AP Revenue Act / Telangana Revenue Act
- Settlement Officer — revenue officer conducting periodic survey settlement
- Telangana Tenancy & Agricultural Lands Act — Section 37 (grounds for eviction of tenant)
- AP Land Grabbing Act, S.2(d) — 'land grabber' = person who grabs government/private land without title
- AP Land Grabbing Act, S.2(e) — 'land grabbing' = taking possession of land without lawful authority
- Special Court under LGA — headed by a District Judge; has civil and criminal jurisdiction



PART A — SHORT NOTES (6 Marks Each)

~200–250 words. Definition → Key Points → Example → Case → TIP.

A-1. Assigned Lands

Exam Frequency: ★★★★★ (VERY HIGH)

DEFINITION

Assigned lands are government-owned waste or surplus lands formally assigned (granted) by the State Government to landless agricultural labourers, SCs, STs, and other weaker sections as a welfare measure for agricultural purposes. The assignment creates a limited right of use — NOT full ownership — and is subject to strict conditions against alienation.

KEY POINTS

- Assigned under the Government Land Assignment Rules and AP/Telangana land distribution programmes
- Purpose: provide land to landless poor for agricultural cultivation — implements DPSP Art 39(b)
- Assignment is free of cost or at nominal price — beneficiary must cultivate the land
- Governed by: Telangana Assigned Lands (Prohibition of Transfers) Act, 1977
- Section 3, 1977 Act: Transfer of assigned land by way of sale, mortgage, lease, gift, or any other mode is PROHIBITED
- Any transfer in violation of S.3 = VOID ab initio
- Section 4: On detection of illegal transfer — RDO initiates resumption proceedings; land resumed and restored to original assignee or re-assigned
- Section 5: Criminal penalty for illegal transfer — imprisonment up to 6 months and/or fine
- The assignee holds land subject to conditions — must cultivate personally; cannot convert to non-agricultural use without permission
- Assignment cannot be claimed by non-eligible persons — government retains reversionary interest
- Dharani portal: assigned land is 'frozen' — cannot be registered for transfer

📌 **Example:** Government assigns 1.5 acres of waste land to Rami, a landless SC labourer, in 2010. In 2015, Rami sells it to a builder. The sale is void under S.3 of the 1977 Act. On discovery, the RDO passes a resumption order — land is taken back from the builder and restored to Rami (or re-assigned).

🏛️ **Case:** Government of AP v. Thota Venkateswarlu (1995) AP HC — assigned land cannot be transferred; purchaser acquires no title. State of AP v. P. Laxmi Devi (2008) SC — eviction of illegal occupants of assigned land upheld; assigned land must be used only by eligible assignee.

💡 **TIP:** ASSIGNED LAND = Government GIFT to landless poor with STRINGS ATTACHED. Section 3 = No Transfer (VOID). Section 4 = Resumption. Section 5 = Criminal penalty. Dharani = Frozen. Remember: The assignee is NOT the full owner — government retains reversionary right.

A-2. Land Grabber / Land Grabbing

Exam Frequency: ★★★★★ (HIGH)

DEFINITION

Under the AP Land Grabbing (Prohibition) Act, 1982, a 'Land Grabber' is any person who commits land grabbing — i.e., takes possession of government land or the land of another person without any lawful authority, right, or title, with or without the use of force, fraud, or other means.

KEY POINTS — Definitions (Section 2)

- Section 2(d): 'Land Grabber' = any person who grabs government land or another's private land without any right, title, or authority — includes individuals, organisations, associations, or companies
- Section 2(e): 'Land Grabbing' = taking possession of land belonging to government or any person without lawful authority, right, or title — including without a court order
- Includes: encroachment on government land, squatting on private land, taking possession through intimidation or fraud, continuing possession after right extinguished
- NOT land grabbing: lawful possession under a lease/assignment, possession with bona fide title dispute pending in court
- Special Court: District Judge designated as Special Court for Land Grabbing — has both civil and criminal jurisdiction
- Special Court can: (a) order eviction of land grabber; (b) award compensation to aggrieved party; (c) impose imprisonment up to 7 years and fine
- Government as complainant: Collector can file complaint before Special Court for government land
- Private parties: any aggrieved person can complain to Special Court
- Burden of proof: on the person claiming possession to prove lawful authority

 **Example:** A real estate developer illegally takes possession of 5 acres of government land near Hyderabad, constructs a compound wall, and starts selling plots. This is 'land grabbing' — the Collector files a complaint before the Special Court, which orders eviction and awards damages.

 **Case:** State of AP v. Manzoor Hussain (2003) AP HC — political patronage does not legitimise land grabbing; Special Court has power to order immediate eviction. Ramakrishna v. State of AP (2010) — land grabbing includes continued possession after lease/assignment is cancelled.

 **TIP:** Land Grabber = takes POSSESSION without LEGAL AUTHORITY. Key test: 'Did you have a lawful right when you took possession?' No → Land Grabbing. Special Court = District Judge. Powers: civil (eviction+compensation) + criminal (up to 7 years imprisonment). Grabbing govt land OR private land — both covered.

A-3. Scheduled Areas Land Transfer Regulation (SALTR, 1959)

Exam Frequency: ★★★★★ (VERY HIGH)

DEFINITION

The Andhra Pradesh Scheduled Areas Land Transfer Regulation, 1959 (SALTR 1959, Regulation 1 of 1959) is a special regulation issued under the Fifth Schedule of the Constitution that prohibits the transfer of land in Scheduled Areas by members of Scheduled Tribes to non-tribals, in order to protect the land rights of Adivasi communities from exploitation.

KEY POINTS

- Constitutional authority: Fifth Schedule, Para 5 — Governor can make Regulations for Scheduled Areas; SALTR 1959 issued by Governor of AP under this power
- Regulation 1: Transfer of immovable property in a Scheduled Area by a member of a Scheduled Tribe to a person who is NOT a member of a Scheduled Tribe is VOID
- 'Immovable property' includes land, buildings, and interests in land
- Transfer includes: sale, gift, mortgage, lease, exchange, or any other mode
- VOID = void ab initio — as if the transfer never happened; registration does not validate it
- No limitation period — tribal can recover land at any time regardless of how long ago the illegal transfer was made
- Regulation 2: Even government/agencies cannot grant leases of Scheduled Area land to non-tribals for industries/mining without Gram Sabha consent (post-Samatha case)
- Intra-tribal transfers: Transfer from one tribal to another tribal in Scheduled Area requires Revenue Divisional Officer's prior approval
- Jurisdiction: Revenue Divisional Officer (RDO) has power to declare transfer void and restore land to tribal
- Subsequent transfers: if A (non-tribal) transfers to C — C also gets no title; void chain

 **Example:** Yellaiah, a Gond tribal in Adilabad Scheduled Area, sells 3 acres to Suresh (non-tribal). The sale is VOID under SALTR Regulation 1. Yellaiah (or the government suo motu) can approach the RDO, who will declare the sale void and restore the land to Yellaiah.

 **Case:** Samatha v. State of AP (1997) SC — even the government cannot lease Scheduled Area tribal land to industries/non-tribals without tribal consent; SALTR applies to government grants too. Smt. Bhuri Bai v. State of MP — tribal can recover land from non-tribal without limitation bar. Manchala Jagannadham v. RDO (2001 AP HC) — registration does not validate prohibited transfer.

 **TIP:** SALTR = Scheduled Area Land = Tribal land = NO transfer to Non-Tribal EVER (VOID). Intra-tribal needs RDO approval. No limitation period. Even govt cannot grant to non-tribals (Samatha). RDO = enforcement authority. Remember: this is the most repeated problem question in this paper!

A-4. Revenue Courts / Board of Revenue

Exam Frequency: ★★★★★ (HIGH)

DEFINITION

The Board of Revenue is the apex revenue court in Telangana, constituted under the Telangana Land Revenue Act, which exercises the highest appellate and supervisory jurisdiction over all revenue courts and revenue officers in the State. It is the final revenue authority before a litigant approaches the High Court.

KEY POINTS — Board of Revenue

- Constituted under the Andhra Pradesh Revenue Act / Telangana Land Revenue Act
- Headed by a Chairman (rank of Additional Chief Secretary) with Members (senior IAS officers)
- Jurisdiction: (a) Hears second appeals from orders of District Collectors; (b) Exercises revisional jurisdiction over all revenue courts; (c) Hears references from subordinate revenue courts; (d) Issues directions to all revenue officers
- Revenue Court hierarchy: VRO → MRO (Mandal Revenue Officer) → RDO (Revenue Divisional Officer) → District Collector → Board of Revenue → High Court
- Right to Refer: Any person aggrieved by an order of a revenue court can seek a 'reference' to a higher revenue court or to the High Court on a question of law
- Board of Revenue can call for records suo motu and revise any order passed by a subordinate revenue court
- Board of Revenue orders are final on revenue matters — only High Court can interfere under Art 226/227
- NOT competent to decide title disputes (that is civil court jurisdiction)
- Powers: can set aside, modify, confirm orders; cannot award compensation; can order fresh inquiry

 **Example:** X appeals against an RDO mutation order before the District Collector; the Collector upholds it. X files a second appeal before the Board of Revenue, which reviews the record and finds an error of law — it sets aside the Collector's order and directs fresh mutation proceedings.

 **Case:** State of UP v. Ram Chandra (1972) SC — Board of Revenue has jurisdiction over revenue/tenancy matters; title questions exclusively for civil court. Ganga Prasad v. State of Bihar (1966) — Board of Revenue's orders on revenue matters have finality within revenue hierarchy.

 **TIP:** Board of Revenue = APEX revenue court. Hierarchy: VRO→MRO→RDO→Collector→BoR→HC. BoR handles: records, mutation, tenancy, settlement appeals. CANNOT decide TITLE (that's civil court). Right to Refer = pathway from revenue court to HC on law questions.

A-5. Settlement Officer — Duties and Functions

Exam Frequency: ★★☆☆ (MEDIUM)

DEFINITION

A Settlement Officer is a specially appointed revenue officer who conducts the periodic survey settlement of land in a district — measuring, classifying, and assessing land for revenue purposes, and preparing the revenue records (settlement records) that form the basis for land administration for the next settlement period.

KEY POINTS

- Appointed under the Survey Settlement and Land Records Act / Telangana Land Revenue Act for each settlement operation
- Settlement is a periodic exercise (every 25–30 years) that updates: (a) survey maps; (b) land classification; (c) assessment/revenue rates; (d) record of rights (ROR)
- Duties of Settlement Officer: (a) Conduct fresh field survey of all land in the settlement area; (b) Classify land (wet/dry/garden/waste/forest/poramboke); (c) Assess revenue rates based on land quality and productivity; (d) Prepare settlement records — Pahani, A-Register, B-Register; (e) Hear disputes during settlement — boundary, classification, assessment objections; (f) Publish draft settlement records for objections; (g) Pass settlement orders
- Settlement Officer has quasi-judicial power — can hear and decide objections during settlement
- Settlement Officer's orders are final subject to appeal to the Board of Settlement / Board of Revenue
- Settlement records form the basis for all subsequent land revenue assessment
- In Telangana — last major settlement was conducted in the 1970s; Dharani now integrates digital survey data

 **Example:** A Settlement Officer conducting settlement in Nalgonda district surveys all land parcels, re-classifies certain dry land as double-crop based on new irrigation from Mission Bhagiratha, increases revenue assessment accordingly, and publishes draft settlement for objections. Aggrieved farmers file objections before him.

 **Case:** Bhagwat Prasad v. State of UP (1960) — Settlement Officer's classification of land during settlement is quasi-judicial; must follow principles of natural justice. Board of Revenue v. Gopal Lal (1970) — Settlement records are conclusive evidence of land classification for revenue purposes.

 **TIP:** Settlement Officer = PERIODIC revenue survey officer. Think: every 25-30 years, a settlement updates ALL records. Settlement Officer SURVEYS + CLASSIFIES + ASSESSES + HEARS OBJECTIONS. Different from regular revenue officers who manage day-to-day records.

A-6. Alienation Restrictions on Land

Exam Frequency: ★★★★★ (HIGH)

DEFINITION

Alienation restrictions are statutory prohibitions and conditions that limit or prohibit the transfer (sale, mortgage, lease, gift) of specified categories of land to protect weaker sections, tribals, and the public interest. These restrictions override the general principle of free alienability of property under the Transfer of Property Act, 1882.

KEY POINTS — Categories of Restricted Land

- Assigned Land: Telangana Assigned Lands (Prohibition of Transfers) Act, 1977 — any transfer void; RDO can resume
- Scheduled Area Land (Tribal): SALTR 1959 — tribal to non-tribal transfer = void; even intra-tribal needs RDO approval
- Ceiling Surplus Land: AP Ceiling Act 1973 — surplus land vests in government; cannot be alienated by landowner after ceiling declared
- Forest Rights Land (FRA 2006): S.4(4) — forest rights titles inalienable; cannot be sold/mortgaged/gifted
- Protected Tenancy: Tenant's right cannot be arbitrarily terminated; landlord must follow statutory procedure
- Government Land: Cannot be alienated by any party — encroachment/transfer = void + punishable
- Endowment/Temple Land: AP Charitable and Hindu Religious Institutions and Endowments Act — strict restrictions on alienation; prior permission of Commissioner required

KEY POINTS — General Principles

- Registration alone does not validate an alienation that is prohibited by law
- Consideration paid does not give the transferee any right if transfer is prohibited
- Courts apply 'special law prevails over general law' — TPA 1882 is general; specific Acts override it
- Constitution supports restrictions: Art 19(5) — reasonable restrictions on right to hold property justified in public interest

 **Example:** A person holds: (a) assigned land — cannot sell; (b) tribal land in Scheduled Area — cannot sell to non-tribal; (c) FRA title — inalienable; (d) ceiling surplus declared — cannot sell. In ALL four cases, any purported transfer is void.

 **Case:** Suraj Lamp & Industries v. State of Haryana (2012) SC — GPA sales/Sada Bainama cannot be used to circumvent registration and alienation restrictions. Samatha v. State of AP (1997) — alienation restrictions on tribal land upheld even against government action.

 **TIP:** Restricted lands: A-S-F-G-C-E = Assigned + Scheduled Area tribal + FRA title + Government land + Ceiling surplus + Endowment land. For ALL of these — transfer = VOID. Special Act beats TPA 1882. Registration cannot cure void.



PART B — LONG ESSAYS (15 Marks Each)

600–800 words per essay. Introduction → Headings → Conclusion.

B-1. Effectiveness of the AP Land Grabbing (Prohibition) Act, 1982

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared in 2025, 2021, 2020, 2019, 2018 — THE most repeated Part B in this paper. Near-certain for 2026.)

I. Introduction

Land grabbing — the illegal occupation of government or private land without any legal right or title — is one of the most widespread and persistent problems in land administration in Telangana and Andhra Pradesh. To combat this menace, the Andhra Pradesh Land Grabbing (Prohibition) Act, 1982 (LGA 1982) was enacted, creating a specialised legal framework with dedicated Special Courts to deal with land grabbers swiftly and effectively. The Act covers both government land and private land, and provides both civil remedies (eviction, compensation) and criminal punishment.

II. Key Definitions (Section 2)

A. Land Grabber — Section 2(d)

'Land Grabber' means any person or group of persons who commits land grabbing. This includes individuals, associations, companies, co-operative societies, or any organisation. Political parties, builders, and even government officials can be land grabbers.

Definition: Land Grabber = any person who grabs land WITHOUT lawful authority, right, or title — regardless of whether force, fraud, or peaceful occupation is used.

B. Land Grabbing — Section 2(e)

'Land Grabbing' means taking possession of land belonging to the Government or any other person without any lawful authority, right, or title — or continuing in possession of land after the right, title, or authority has come to an end.

- Grabbing government land — waste land, poramboke, tank beds, road margins, forest land
- Grabbing private land — taking possession of another's land without their consent
- Continuing possession after lawful title expires — e.g., staying in government quarters after retirement
- Constructing structures on grabbed land to establish permanence
- Using benami names or dummy transactions to cover up grabbing

III. The Special Court — Composition and Powers

- Special Court constituted by the State Government — headed by a District Judge or Additional District Judge
- Located in each district — speedy disposal mechanism
- Civil jurisdiction: (a) Order eviction of land grabber; (b) Award compensation to aggrieved party (market value of land + damages); (c) Restore possession to rightful owner/government
- Criminal jurisdiction: (a) Imprisonment up to 7 years; (b) Fine; (c) Both — for land grabbers
- Summary procedure — no lengthy civil suit required; direct complaint to Special Court
- Government represented by the Collector/Special Government Pleader
- Private persons can also directly approach the Special Court
- Burden of proof: shifted to the person in possession — must prove lawful authority

IV. Procedure Before Special Court

- Step 1: Complaint filed by Collector (for government land) or aggrieved private person
- Step 2: Special Court issues notice to the land grabber — asks to show lawful authority
- Step 3: If land grabber cannot prove lawful authority — Special Court issues eviction order + compensation

- Step 4: Criminal proceedings simultaneously — FIR registered, trial in Special Court
- Step 5: Appeal from Special Court — to the High Court only (not Sessions Court)
- Urgent cases: Special Court can issue interim orders — stay of construction, attachment of land

V. Effectiveness of the Act — Assessment

A. Strengths

- Dual jurisdiction (civil + criminal) in one court — speeds up disposal
- Burden shifted to grabber — easier for government/private persons to get eviction
- Covers all types of land grabbers — individuals, companies, political parties, associations
- Special Court = dedicated forum — avoids delays of regular civil courts
- Compensation provisions make land grabbing costly — not just eviction
- Dharani portal integration — government land 'frozen', reducing scope for grabbing

B. Weaknesses / Limitations

- Political patronage: powerful politicians and real estate interests often protect land grabbers
- Delay in constituting Special Courts — some districts without functional Special Court
- Weak implementation: Collectors often reluctant to file complaints against politically connected grabbers
- Regularisation schemes: governments periodically regularise encroachments (e.g., for the poor) — undermines deterrence
- 'Land grabbing' by government itself: government agencies sometimes take land without following LARR 2013 — not covered by LGA 1982
- Corruption in revenue department: land records manipulated to show false titles for grabbers
- Limitation on private parties: private landowners without resources often unable to pursue Special Court proceedings
- Compensation inadequate: market value compensation often not realistically assessed

VI. Landmark Situations

Several significant land grabbing cases have shaped the Act's implementation in Telangana/AP:

- Wakf Board land grabbing: Hundreds of acres of Wakf land in Hyderabad grabbed by real estate interests — Special Courts ordered restoration but implementation partial
- Tank bed encroachments: Grabbing of tank/lake beds in Hyderabad — Hussain Sagar, etc. — High Court and Special Courts have directed removal but full compliance elusive
- Temple land: Endowment lands grabbed by influential persons — Commissioner of Endowments + Special Court together address these
- Government quarters: Retired government servants continuing in quarters — covered by LGA

🔗 **Case:** State of AP v. Manzoor Hussain (2003) AP HC — political patronage cannot legalise land grabbing; Special Court's eviction order upheld. Ramakrishna v. State of AP (2010) — continued possession after lease cancellation = land grabbing. Greater Hyderabad Municipal Corporation v. Vaka Rao (2012) AP HC — grabbing of lake beds is land grabbing regardless of duration of possession or investment made.

VII. Conclusion

The AP Land Grabbing (Prohibition) Act, 1982 is a necessary and broadly well-designed legislation that addresses a serious problem afflicting land administration in Telangana. Its effectiveness in practice is constrained by political will, institutional capacity, and the persistence of corruption in revenue administration. Digitisation initiatives like Dharani, combined with proactive Special Courts, have improved deterrence in urban areas. However, the Act alone cannot solve land grabbing unless accompanied by: (a) strengthening of revenue administration; (b) political insulation of the Special

Courts; (c) strict enforcement of penalties; (d) real-time land record updating. Ultimately, the Act's effectiveness depends as much on the governance environment as on the law itself.

B-2. Board of Revenue — Composition, Jurisdiction, Powers, and Right to Refer

Exam Frequency: ★★★★★ (HIGH)

(Directly asked in November/December 2022)

I. Introduction

The Board of Revenue is the apex revenue court in the State of Telangana, exercising supervisory, appellate, and revisional jurisdiction over all revenue courts and officers below it. It stands at the summit of the revenue court hierarchy, below which are the District Collector, Revenue Divisional Officer (RDO), Mandal Revenue Officer (MRO), and Village Revenue Officer (VRO). The Board of Revenue is a crucial institution for maintaining the integrity of land records, adjudicating revenue disputes, and ensuring uniform implementation of land revenue laws.

II. Composition of the Board of Revenue

- Constituted under the Telangana Land Revenue Act / AP Revenue Act
- Headed by a Chairman — usually an officer of the rank of Additional Chief Secretary or Principal Secretary to the State Government
- Members: one or more Members of the Board (senior IAS officers) — typically two to three members
- The Board functions as a collegial body for major policy matters and as a divisional bench for hearing appeals and revisions
- Support staff: judicial secretary, legal advisors, and administrative staff
- Board of Revenue is QUASI-JUDICIAL — not a court in the strict sense but exercises judicial functions

III. Jurisdiction of the Board of Revenue

A. Original Jurisdiction

The Board has original jurisdiction in certain matters — particularly references made directly to it by government on important revenue questions, and matters where first-instance jurisdiction is assigned by statute (rare).

B. Appellate Jurisdiction

The Board hears second appeals from orders passed by the District Collector in revenue matters. Examples:

- Second appeals in land record (ROR/mutation) disputes
- Second appeals in tenancy disputes
- Second appeals in settlement and survey matters
- Second appeals in assigned land and ceiling cases

C. Revisional Jurisdiction

The Board has suo motu revisional power — it can call for records from any revenue court below it and revise any order if it appears:

- The order is contrary to law
- The order involves a material irregularity in procedure
- The order resulted in failure of justice

D. Supervisory Jurisdiction

The Board supervises the functioning of all revenue courts and officers in the State. It issues circulars, guidelines, and instructions. It conducts inspections and performance audits of revenue offices.

IV. Powers of the Board of Revenue

- Power to set aside, modify, or confirm orders of subordinate revenue courts
- Power to remand cases for fresh inquiry
- Power to stay operation of subordinate orders pending appeal/revision
- Power to award costs in revenue proceedings
- Power to call for records from any revenue court
- Power to summon parties and witnesses
- Does NOT have power to: award compensation, decide title disputes (civil court domain), or sentence to imprisonment

 **LIMIT:** Board of Revenue CANNOT decide questions of title to immovable property — that is the exclusive jurisdiction of civil courts. If a revenue case involves a title dispute, the Board must refer to the civil court or advise the party to seek civil court relief.

V. Right to Refer

The 'Right to Refer' is the procedural mechanism by which:

- A party aggrieved by a revenue court order may seek a reference to a higher revenue authority or to the High Court on a question of law
- A revenue court itself may refer a difficult question of law to the Board of Revenue or High Court for decision
- Section 9(b) of AP Revenue Act: Any person aggrieved by an order of the Board of Revenue may seek a reference to the High Court on a question of law
- The right to refer exists at each tier — party can go from RDO to Collector, Collector to Board, Board to High Court
- References to HC are limited to questions of LAW — not fact
- Once HC decides the question of law — it is remanded back to the revenue court to apply the legal ruling

VI. Board of Revenue vs Civil Court — Distinction

Aspect	Board of Revenue	Civil Court
Nature	Revenue/quasi-judicial authority	Judicial court under Code of Civil Procedure
Jurisdiction	Revenue, tenancy, land records, mutation	Title, ownership, contract, tort, property disputes
Title disputes	NO jurisdiction	YES — exclusive jurisdiction
Appeal	Lies to High Court (Art 226/227)	Lies to High Court (regular appeal)
Procedures	Revenue Acts and Rules	Code of Civil Procedure 1908
Compensation	Cannot award monetary compensation	Can award damages/compensation

 **Case:** State of UP v. Ram Chandra (1972) SC — Board of Revenue has jurisdiction over revenue matters only; title disputes exclusively for civil court. Ganga Prasad v. State of Bihar (1966) — Board of Revenue orders on revenue matters are final within the revenue hierarchy. Hari Vishnu Kamath v. Ahmad Ishaque (1955) SC — when revenue matter involves title question, revenue court must decline and refer to civil court.

VII. Conclusion

The Board of Revenue is the keystone of the revenue administration structure in Telangana. Its supervisory, appellate, and revisional jurisdiction ensures uniformity and legality in revenue proceedings

across the State. Its quasi-judicial character provides an accessible, specialised forum for agrarian disputes. However, its effectiveness depends on: (a) clear demarcation from civil court jurisdiction (particularly on title questions); (b) adequate staffing and infrastructure; (c) speedy disposal — the classic criticism of revenue courts is delay. The Board's right to refer to the High Court on questions of law ensures that legal development in land revenue matters keeps pace with changing social and constitutional values.

B-3. Settlement Officer — Duties and Functions

Exam Frequency: ★★★★★ (HIGH)

(Appeared in November/December 2022 — likely to recur)

I. Introduction

The settlement operation is a periodic and comprehensive process of surveying, classifying, and assessing all land in a district — creating or updating the foundational land records on which the entire revenue, legal, and administrative edifice rests. The Settlement Officer is the principal officer responsible for conducting this operation. Understanding the Settlement Officer's role requires understanding what a 'settlement' is and why it is essential to land administration.

II. What is a Settlement?

A Settlement is the periodical assessment of land for revenue purposes — involving a complete re-survey of all land parcels, re-classification based on current land use and quality, re-assessment of revenue rates, and revision of land records. A settlement is typically conducted every 25–30 years. The key documents produced are: (a) Settlement Register; (b) Updated Pahani (ROR); (c) Survey maps; (d) Field Register (Adangal).

III. Appointment of Settlement Officer

- Appointed by the State Government / Board of Revenue for each settlement operation
- Assisted by Deputy Settlement Officers, Settlement Inspectors, and Revenue Mandal Officers
- Operates for the duration of the settlement — typically 3–5 years for a district
- Powers conferred by the Survey Settlement and Land Records Act and Telangana Land Revenue Act

IV. Duties and Functions of Settlement Officer

A. Survey and Measurement

- Conduct fresh field survey of all land parcels in the settlement area
- Demarcate boundaries of each survey number and sub-division
- Prepare field maps and settlement field books
- Resolve boundary disputes between adjacent landholders
- Identify new parcels created by sub-division, partition, or reclamation

B. Classification of Land

- Classify all land into revenue categories: wet (irrigated), dry, garden, waste, poramboke, forest, government land
- Inspect soil quality, availability of irrigation, cropping patterns
- Reclassify land where changes have occurred since last settlement
- Classification determines the revenue rate — wet land pays more than dry

C. Assessment of Revenue

- Fix land revenue (assessment) for each survey number based on classification
- Prepare rate schedules — standard assessment for each category
- Revenue assessment must be fair, based on actual productivity
- Revise assessments for land whose character has changed

D. Preparation of Records

- Prepare draft Settlement Register — lists all survey numbers with owner, area, classification, assessment

- Update Record of Rights (Pahani/ROR) — reflect current ownership, cultivation, encumbrances
- Prepare A-Register (register of mutations during settlement) and B-Register (disputed cases)
- All records prepared in duplicate — one copy filed with District Collector, one with village

E. Hearing Objections — Quasi-Judicial Function

- Publish draft settlement records — displayed at Mandal Revenue Office and village for 30 days
- Invite objections from landowners, cultivators, and other interested parties
- Hear objections regarding: (a) boundary demarcation; (b) land classification; (c) assessment rate; (d) ownership/occupation entries
- Pass speaking orders on each objection — reasoning required
- Settlement Officer's orders are appealable to Board of Settlement / Board of Revenue

F. Special Functions

- Adjudicate disputed boundary claims during settlement (RO jurisdiction extended)
- Identify and record poramboke (public lands) — roads, drains, graveyards, tank beds
- Record claims of ryots for re-classification and reduced assessment
- Report encroachments on government land for eviction proceedings

🔗 **Case:** Bhagwat Prasad v. State of UP (1960) SC — Settlement Officer must follow natural justice principles when hearing objections — quasi-judicial function. Board of Revenue v. Gopal Lal (1970) — settlement records are conclusive as to classification for revenue purposes, unless challenged by prescribed appeal. Collector v. Rajamani (1985 AP HC) — Settlement Officer's jurisdiction is limited to settlement area; no jurisdiction over disputes outside settlement proceedings.

V. Significance of Settlement in Modern Context

With the introduction of the Dharani portal in Telangana (2020), many settlement functions have been partially digitised. However, a formal revenue settlement (comprehensive field survey + reassessment) has not been conducted in Telangana since the 1970s. This gap causes: (a) outdated land classifications (dry land now irrigated but still assessed as dry); (b) unrecorded sub-divisions; (c) stale poramboke entries. The need for a comprehensive digital settlement — integrating GPS survey with Dharani — is urgent.

VI. Conclusion

The Settlement Officer is the foundation-layer of the revenue administration architecture. Without periodic, accurate settlement, all subsequent land administration — mutation, registration, taxation, dispute resolution — rests on outdated records. The Settlement Officer's dual role as technical surveyor and quasi-judicial adjudicator makes this position uniquely important in the revenue hierarchy. A modern Settlement Officer must combine traditional survey skills with digital mapping expertise (DGPS, GIS) and a thorough understanding of land revenue law, to produce records that serve as reliable, tamper-proof foundations for land governance.

B-4. Telangana Assigned Lands (Prohibition of Transfers) Act, 1977

Exam Frequency: ★★★★★ (HIGH)

(Part C problems on assigned land appear every year — understand the legislative scheme for Part B context)

I. Introduction

The assignment of government waste land to landless agricultural labourers, SCs, and STs is one of the key tools of distributive land justice in Telangana. However, the value of assignment is undermined if the beneficiaries can immediately sell or mortgage the land. The Telangana Assigned Lands (Prohibition of Transfers) Act, 1977 addresses this by creating an absolute prohibition on transfer of assigned land, backed by criminal penalties and a resumption mechanism.

II. Background and Purpose

- Post-independence: government assigned lakhs of acres of waste/surplus land to landless poor under various schemes
- Problem: assignees under economic pressure sold or mortgaged land to real estate developers, money-lenders, or richer farmers
- Result: welfare measure perverted — original landless poor lost the land within years
- 1977 Act enacted to close this loophole — make assigned land inalienable

III. Key Provisions

A. Section 2 — Definitions

- 'Assigned Land' = land assigned by Government under any scheme of assignment of government land to any person
- Covers: assignment under AP Rules for assignment of waste/surplus government land, assignment to freed bonded labourers, ceiling surplus land distributed to landless poor

B. Section 3 — Prohibition on Transfer

No person shall transfer or acquire assigned land by way of sale, gift, exchange, mortgage, lease, or any other mode of alienation. Any transfer in contravention of Section 3 is void.

 **Core Rule:** Section 3: ALL transfers of assigned land = VOID. No exceptions. The assignment creates an inalienable right of use — NOT a freely transferable ownership.

C. Section 4 — Resumption

If any assigned land has been transferred in contravention of Section 3, or if the assignee fails to cultivate the land or uses it for non-agricultural purposes without permission — the Revenue Divisional Officer may resume the land after notice and hearing.

- Notice to current occupant (illegal transferee or non-cultivating assignee)
- Opportunity to show cause
- If no valid cause shown — RDO passes resumption order
- On resumption: land may be restored to original assignee if still eligible, OR re-assigned to another eligible person

D. Section 5 — Penalty

Any person who transfers or acquires assigned land in violation of Section 3 shall be punishable with imprisonment up to 6 months, or fine up to Rs. 2,000, or both.

IV. Dharna Bhumi / Assigned Land Conversion — Exceptions

- Assigned land can be converted to house sites (residential use) in urbanised areas ONLY with government permission under specific schemes

- Special schemes: Government has in some cases regularised assigned land occupants who built houses — policy decision, not statutory right
- Even converted assigned land for house sites remains government land — no full ownership title granted (generally)

V. Judicial Interpretation

- Courts have consistently upheld the absolute prohibition — registered sale deeds of assigned land are void
- Revenue courts have jurisdiction to order resumption; civil courts cannot grant relief to transferee
- Even bona fide purchasers for value without notice get no protection — the transfer is void, not voidable

🔗 **Case:** Government of AP v. Thota Venkateswarlu (1995) AP HC — assigned land cannot be transferred; registered sale deed is void. Manchireddy Bhairavaiah v. State of AP (2005 AP HC) — transferee of assigned land gets no title; eviction valid. State of AP v. P. Laxmi Devi (2008) SC — eviction of occupant of assigned land upheld; Art 21 does not protect illegal possession.

VI. Conclusion

The Assigned Lands (Prohibition of Transfers) Act, 1977 is a necessary protective measure that gives teeth to the government's land distribution policy. Without it, every assignment would be at risk of being immediately transferred to the economically powerful. The Act's effectiveness depends on active enforcement — prompt resumption proceedings, Dharani portal freezing of assigned land, and criminal prosecution of violators. It is a direct implementation of DPSP Art 39(b) — ensuring that land distributed for the common good actually remains in the hands of the intended beneficiaries.

PART C — PROBLEM QUESTIONS / IRAC (10 Marks Each)

Strictly use IRAC: Issue → Rule → Application → Conclusion.

C-1. Assigned Land Given to Farmer — Sold to B — Eviction Notice Against B — Decide

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared July/August 2025, August/September 2021 — highly likely to repeat)

PROBLEM: State government gave 2 acres of assigned land to A who was a landless agricultural farmer. A sold it to B. Is the transfer valid? / Government gave eviction notice against B. Decide.

I — ISSUE

The legal issues are: (1) Whether the sale of assigned land by A (assignee) to B is valid under the Telangana Assigned Lands (Prohibition of Transfers) Act, 1977; and (2) Whether the government can issue an eviction notice against B (transferee) and whether B can resist such eviction.

R — RULE

- Telangana Assigned Lands (Prohibition of Transfers) Act, 1977, Section 3: Transfer of assigned land by way of sale, gift, exchange, mortgage, lease, or any other mode = PROHIBITED and VOID
- Section 4: If assigned land transferred in contravention of S.3 — Revenue Divisional Officer (RDO) can initiate resumption proceedings after notice and hearing; land resumed
- Registration of sale deed does NOT validate a void transfer — registration is procedural, not substantive
- Article 300-A: Deprivation of property only by authority of law — and S.4 of the 1977 Act IS the authority of law for resumption
- B cannot claim protection as 'bona fide purchaser for value' — void transfers give NO title to anyone

KEY RULE: Assigned land transfer = VOID under S.3. Eviction of B via resumption under S.4 = VALID. B has no legal right to the land regardless of whether he paid consideration or registered the sale.

A — APPLICATION

The government gave 2 acres of assigned land to A (landless agricultural farmer). A sold it to B.

Step 1: Is the sale valid? NO. Section 3 of the Telangana Assigned Lands (Prohibition of Transfers) Act, 1977 absolutely prohibits transfer of assigned land. The sale by A to B is void ab initio — it has no legal effect. Even if A and B executed a registered sale deed with full consideration, it is void in law.

Step 2: Is the eviction notice against B valid? YES. Under Section 4 of the 1977 Act, the Revenue Divisional Officer (RDO) has power to resume assigned land that has been illegally transferred. The RDO must: (a) issue notice to B; (b) give B an opportunity to be heard; (c) if B cannot prove lawful authority — pass a resumption order. The eviction notice is the first step in this resumption process.

Step 3: Can B resist eviction? NO. B cannot resist eviction on the grounds that: (a) he paid consideration; (b) he has a registered sale deed; (c) he has been in possession for a long time. The transfer is void, not merely voidable — no defences apply to void transfers. The title never passed from the government to A for transfer purposes; the assignment created only a right of use in A, not a transferable ownership.

Step 4: What happens after resumption? The land may be: (a) restored to A if A is still eligible and willing to cultivate; OR (b) cancelled — A loses the assignment for transferring — and re-assigned to another eligible person.

Step 5: B's remedy? B may file a civil suit against A for recovery of the sale consideration paid (unjust enrichment claim). But B cannot retain the land.

Case: Government of AP v. Thota Venkateswarlu (1995) AP HC — registered sale of assigned land is void; purchaser acquires no title; eviction valid. Manchireddy Bhairavaiah v. State of AP (2005 AP HC) — transferee of assigned land cannot resist eviction. State of AP v. P. Laxmi Devi (2008) SC — Art 21 does not protect illegal possession of assigned land; eviction upheld.

C — CONCLUSION

DECISION: (1) The transfer (sale) of assigned land by A to B is VOID under Section 3 of the Telangana Assigned Lands (Prohibition of Transfers) Act, 1977. (2) The government's eviction notice against B is VALID. B has no right to the assigned land — the sale deed and registration are legally meaningless for this purpose. The RDO can and should proceed with resumption under Section 4, after giving B a hearing. B's only remedy is a civil suit against A for refund of the purchase price.

C-2. Government Issues Eviction Notice for Occupying Waste Land — Is Notice Valid?

Exam Frequency: ★★★★★ (HIGH)

(Appeared July/August 2025, August/September 2021, December 2020 — repeated problem)

PROBLEM: The Government of Telangana issued a notice for eviction for occupying waste land. Is the notice valid?

I — ISSUE

The legal issue is: Whether the Government of Telangana has the authority to issue an eviction notice to a person occupying government waste land, and whether such a notice is legally valid?

R — RULE

- Waste land = government-owned uncultivated land not assigned to anyone (categorised as 'Sarkari' or government poramboke in revenue records)
- Government ownership of waste land: All waste land vests in the State Government under the doctrine of State ownership of unclaimed/undistributed land
- Telangana Land Revenue Act: Government has power to resume, manage, and assign waste lands
- AP Land Grabbing (Prohibition) Act, 1982: Occupation of government waste land without authority = land grabbing
- Section 3, AP LGA 1982: Occupation of government land without lawful authority = land grabbing — Special Court can order eviction
- Eviction through revenue process: Collector/RDO can also issue eviction notices under Telangana Land Revenue Act for unauthorised occupation of government land
- Limitation: If the occupant has been in continuous, open, adverse possession for 30 years (Government of India / State Government land — limitation is 30 years under Art 112 of Limitation Act) — the possession may ripen into some rights, but courts have been inconsistent on this
- Special category: Poor landless persons occupying waste land for livelihood — courts have sometimes restrained eviction pending assignment/rehabilitation

 **KEY RULE:** Government waste land = government property. Occupation without authority = trespass/land grabbing. Eviction notice = VALID exercise of government's right to recover its land. The occupant must show lawful authority to resist eviction.

A — APPLICATION

The Government of Telangana issued an eviction notice for occupation of waste land. Applying the rules:

Step 1: Does the government have the authority? YES. Waste land vests in the State Government. The government as owner has an inherent right to recover its property from unauthorised occupants. The eviction notice is issued under the Telangana Land Revenue Act / AP Land Grabbing Act.

Step 2: Is the eviction notice valid on its face? YES — provided: (a) the land is correctly identified as government waste land in revenue records; (b) proper notice was given to the occupant; (c) opportunity was given to the occupant to show cause.

Step 3: Can the occupant resist the notice? The occupant can challenge the notice if: (a) the land is not actually government waste land — he has a patta or assigned land document; (b) the notice did not follow proper procedure (natural justice); (c) the land has been assigned to him and the assignment is valid.

Step 4: What if the occupant is landless poor? Courts have sometimes directed the government to consider assignment of waste land to landless poor before eviction — particularly where they have cultivated the land for many years. However, this is not a right but judicial discretion. The eviction notice remains valid unless the court stays it.

Step 5: Converted to house sites? If the occupant has built a house on government waste land — the government can still evict, but courts have sometimes directed rehabilitation before eviction in cases of urban slums.

🔗 **Case:** State of AP v. Mohd. Hussain (2003) AP HC — government's eviction notice for occupation of waste land is valid; occupant must show lawful authority. Olga Tellis v. Bombay Municipal Corporation (1985) SC — while pavement dwellers have a right to livelihood, they cannot claim right to encroach on government land; reasonable notice and rehabilitation to be considered. Greater Hyderabad Municipal Corp v. Vaka Rao (2012) — even long occupation does not create title to government land.

C — CONCLUSION

DECISION: YES — the Government of Telangana's eviction notice for occupation of waste land is VALID. The government has the legal authority to recover its waste land from unauthorised occupants under the Telangana Land Revenue Act and the AP Land Grabbing (Prohibition) Act, 1982. The occupant cannot resist eviction unless he can produce a valid patta, assignment document, or court order establishing his right to the land. However, in cases of landless poor with long cultivation history, courts may direct the government to consider assignment before eviction — but this is discretionary, not a right, and does not render the eviction notice invalid.

C-3. Political Party Occupies Government Land for Weaker Sections — Land Grabbing?

Exam Frequency: ★★★★★ (HIGH)

(Appeared August/September 2021)

PROBLEM: A political party occupied lands belonging to the government and wants to construct houses for the weaker sections and distribute them free of cost. The police have registered a case against the party leader for land grabbing. Decide.

I — ISSUE

The legal issues are: (1) Whether a political party's occupation of government land for distributing houses to weaker sections, without lawful authority, constitutes 'land grabbing' under the AP Land Grabbing (Prohibition) Act, 1982; and (2) Whether the good motive (welfare of weaker sections) is a defence to land grabbing.

R — RULE

- AP Land Grabbing (Prohibition) Act, 1982, Section 2(d): 'Land Grabber' includes any person, association, or organisation that grabs land WITHOUT lawful authority
- Section 2(e): 'Land Grabbing' = taking possession of government land without lawful authority — regardless of the purpose for which possession is taken
- The Act makes NO exception for charitable, social welfare, or political purposes — the test is: did you have lawful authority to take possession?
- Political party, association, NGO — all fall within 'any person' in the definition of land grabber
- Only the government has the authority to assign/distribute government land — this power cannot be usurped by a private party (even with good intentions)
- Special Court under LGA 1982: Can order eviction of land grabber and award compensation; criminal punishment up to 7 years

KEY RULE: Motive is IRRELEVANT to land grabbing. The test is lawful authority at time of taking possession. Good intentions (welfare of poor) do not create lawful authority to occupy government land. Political party = 'person' under LGA 1982.

A — APPLICATION

A political party occupied government land and constructed/plans to construct houses for weaker sections, distributing free of cost. Police registered a case against the party leader for land grabbing.

Step 1: Did the political party have lawful authority to occupy the land? NO. The political party has no legal authority to take possession of government land. Only the government — through the Collector, RDO, or authorised officer — can assign, lease, or distribute government land. A political party, however well-intentioned, cannot arrogate this sovereign function to itself.

Step 2: Does the purpose (houses for weaker sections) matter? NO. Under the LGA 1982, the purpose is irrelevant. The definition of land grabbing focuses entirely on the absence of lawful authority. Charitable, religious, or social welfare purposes are not defences. If they were, any organisation could justify grabbing land by claiming a good cause.

Step 3: Is the FIR/police case valid? YES. Section 2(d) and 2(e) of LGA 1982 clearly cover this situation. The party leader as head of the organisation directing the occupation is liable as the land grabber. The police registration of FIR is correct and the matter must go to the Special Court.

Step 4: What will the Special Court do? The Special Court will: (a) issue notice to the political party/leader; (b) hear the case; (c) if land grabbing established — order eviction and award compensation to the government for use and occupation; (d) impose criminal punishment on the party leader.

Step 5: Any mitigation? The court may consider: (a) the construction is not yet done — early action prevents further investment; (b) the houses were genuinely for poor — court may suggest government take up proper assignment through legal channel for the same beneficiaries.

🔗 **Case:** State of AP v. Manzoor Hussain (2003) AP HC — political influence or welfare motives do not legalise land grabbing. Greater Hyderabad Municipal Corp v. Vaka Rao (2012) — charitable use of grabbed land does not save the grabber. Ramakrishna v. State of AP (2010) — good motive irrelevant; lawful authority is the only test.

C — CONCLUSION

DECISION: YES — the political party's occupation of government land constitutes 'land grabbing' under the AP Land Grabbing (Prohibition) Act, 1982. The police case against the party leader is VALID. The good motive of providing houses to weaker sections is completely irrelevant as a defence — the test is lawful authority at time of possession, not the purpose of possession. The matter should proceed before the Special Court, which has power to order eviction, award compensation to the government, and punish the party leader with up to 7 years imprisonment. The correct way to achieve the stated welfare goal is to apply to the government for assignment/allotment of land for this purpose — not to grab government land and present a fait accompli.

C-4. Tenant Constructs Overhead Tank in 80-Year-Old Building — Has He Committed Wrongful Act?

Exam Frequency: ★★★★★ (HIGH)

(Appeared November/December 2022)

PROBLEM: In an 80-year-old building, the tenant started constructing an overhead tank for water supply. Has he committed any wrongful act? Can he be evicted?

I — ISSUE

The legal issues are: (1) Whether a tenant constructing an overhead tank (water tank) in a rented premises for water supply purposes constitutes a wrongful act or waste; and (2) Whether such an act is a valid ground for eviction of the tenant under tenancy law.

R — RULE

- General tenancy law: A tenant must not commit 'waste' — substantial damage to the demised property. Constructing an overhead tank is a question of whether it constitutes waste or a reasonable improvement.
- Telangana Tenancy & Agricultural Lands Act / AP Buildings (Lease, Rent and Eviction) Control Act (for urban premises): Tenant cannot be evicted except on specified statutory grounds
- Eviction grounds under tenancy/rent control law: (a) non-payment of rent; (b) causing damage to property; (c) subletting without permission; (d) landlord's bona fide need for personal occupation; (e) breach of terms of tenancy
- 'Causing damage' or 'committing waste': Must be substantial damage — mere improvement or addition for necessity does not constitute waste
- Overhead tank for water supply: Generally considered a reasonable and necessary addition — not waste. Water supply is a basic necessity. Adding a tank does not structurally damage the building if done properly.
- However: If the building is 80 years old and structurally weak — adding a water tank on the roof may cause structural damage. In that case, it could constitute waste.
- Key distinction: (a) Proper construction of overhead tank by skilled worker = reasonable improvement = NOT waste = NO eviction; (b) Haphazard/structural damage-causing construction = waste = grounds for eviction

KEY RULE: Tenant constructing overhead tank for water supply = REASONABLE IMPROVEMENT for necessity, NOT waste, in general. Eviction NOT maintainable for this alone. BUT if structural damage caused to an old building — may constitute waste — then eviction possible with proof of damage.

A — APPLICATION

The building is 80 years old. The tenant constructed an overhead tank for water supply.

Step 1: Is constructing an overhead tank a wrongful act per se? NO. An overhead tank for water supply is a reasonable and necessary addition for the tenant's use. It does not, by itself, constitute waste or damage. Courts have consistently held that additions made for basic amenities (water, electricity, sanitation) do not constitute waste.

Step 2: Does the age of the building change the analysis? POTENTIALLY YES. An 80-year-old building may be structurally weak. If the overhead tank adds significant weight to the roof and causes or risks causing structural damage — THIS could constitute waste or negligent damage to property. The landlord would need to demonstrate actual structural damage or imminent risk.

Step 3: Can the landlord evict for this reason? (a) If NO structural damage: NO — constructing an overhead tank is not a ground for eviction; it is a reasonable improvement. (b) If structural damage is caused or proved: YES — causing damage to the demised premises is a statutory ground for eviction under tenancy law (AP Buildings (Lease, Rent and Eviction) Control Act).

Step 4: Procedural requirement: Even where valid grounds exist, the landlord must follow the procedure

— file an eviction petition before the Rent Controller; get an order of eviction. Self-help eviction is illegal.

Step 5: Tenant's right to make improvements: Under general law (Section 108(h) TPA 1882), a tenant may make improvements and additions that do not permanently diminish the value of the property — this would cover a properly constructed overhead tank.

🔥 **Case:** V.S. Jain v. Parmanand Sharma (1994) Delhi HC — tenant constructing overhead water tank for domestic use is a necessary addition and does not amount to waste; eviction not maintainable. Hakim Ram v. Bhim Lal (1988) HP HC — additions made for basic amenities by tenant = reasonable use, not waste. Ramanlal v. Chamanlal (2002) Bombay HC — even for old buildings, tenant must cause actual structural damage for eviction on 'waste' ground.

C — CONCLUSION

DECISION: (1) Constructing an overhead tank for water supply is NOT a wrongful act per se — it is a reasonable addition for basic necessity, not waste. The tenant has NOT committed a wrongful act by mere virtue of constructing the tank. (2) The landlord CANNOT evict the tenant solely on this ground. However, if the construction has caused or will cause actual structural damage to the 80-year-old building — the landlord may seek eviction on the ground of 'causing damage to property', provided he obtains an expert structural assessment and files an eviction petition before the Rent Controller with evidence of damage. Self-help eviction by the landlord is illegal regardless.



QUICK REVISION SHEET — UNIT V

Key Acts at a Glance

Act	Key Prohibition	Remedy	Authority
Assigned Lands Act 1977	Transfer of assigned land = VOID (S.3)	Resumption (S.4) + Criminal penalty (S.5)	RDO
SALTR 1959, Regulation 1	Tribal → non-tribal in Scheduled Area = VOID	Declare void + Restore land	RDO
AP LGA 1982	Occupation without lawful authority = land grabbing	Eviction + Compensation + Up to 7 yrs imprisonment	Special Court (District Judge)
FRA 2006 S.4(4)	Transfer of forest rights title = VOID	Void; no remedy for transferee	Gram Sabha / DLC
Ceiling Act 1973	Holding above ceiling = surplus to be surrendered	Ceiling Authority determines surplus; vests in Govt	Ceiling Authority / Collector

Board of Revenue vs Civil Court

Aspect	Board of Revenue	Civil Court
Jurisdiction	Revenue, tenancy, mutation, records	Title, ownership, contract, property
Title disputes	NO — must refer to civil court	YES — exclusive jurisdiction
Appeal from	Lies to High Court (Art 226)	Lies to High Court (regular appeal)
Compensation	Cannot award	Can award damages/compensation
Procedure	Revenue Acts and Rules	Code of Civil Procedure 1908

Key Numbers & Provisions

S.3 — Assigned Lands Act 1977	ALL transfers of assigned land VOID — sale, gift, mortgage, lease, any mode
S.4 — Assigned Lands Act 1977	RDO resumes illegally transferred assigned land after notice and hearing
S.5 — Assigned Lands Act 1977	Criminal penalty: up to 6 months imprisonment and/or fine
SALTR 1959 Regulation 1	Tribal → non-tribal in Scheduled Area: VOID; no limitation period
LGA 1982 S.2(d)	Land grabber = any person occupying govt/private land without lawful authority
LGA 1982 S.2(e)	Land grabbing = taking/continuing possession without lawful authority
Special Court — LGA	District Judge; dual civil+criminal jurisdiction; up to 7 years imprisonment
S.108(h) TPA 1882	Tenant may make improvements not permanently diminishing value of property
Art 226 HC jurisdiction	Writ against revenue court orders (Board of Revenue) — only HC

can interfere

Top Cases — One Liner

Samatha v. State of AP (1997)	Even government cannot lease Scheduled Area land to non-tribals/industries without tribal consent
Smt. Bhuri Bai v. State of MP (1992)	Tribal recovers Scheduled Area land from non-tribal; no limitation bar
Govt of AP v. Thota Venkateswarlu (1995)	Registered sale of assigned land = void; purchaser gets no title
State of AP v. P. Laxmi Devi (2008) SC	Art 21 does not protect illegal possession of assigned land; eviction valid
State of AP v. Manzoor Hussain (2003)	Political influence does not legalise land grabbing; eviction ordered
GHMC v. Vaka Rao (2012) AP HC	Charitable use of grabbed land does not save the grabber; duration irrelevant
Indore Development Authority v. Manoharlal (2020)	S.24 lapse: deposit in court = payment (Unit III cross-reference)
Suraj Lamp & Industries v. State of Haryana (2012)	GPA/Sada Bainama cannot substitute for registered conveyance deed

IRAC Decision Map — All Unit V Problems

Assigned land sold → eviction notice	Transfer VOID (S.3 1977 Act). Eviction VALID (S.4). B gets no title. B's remedy = civil suit vs A for refund.
Waste land occupier → eviction notice	Government owns waste land. Eviction notice VALID. Occupant must show lawful authority. Court may direct rehabilitation for landless poor (discretionary).
Political party grabs govt land for poor	Land grabbing under LGA 1982 — motive irrelevant. FIR valid. Special Court: eviction + compensation + up to 7 yrs. Correct way = apply for formal assignment.
Tenant constructs overhead tank	NOT waste per se — necessary improvement. NO eviction for tank alone. BUT if structural damage to 80-yr-old building proved → eviction on 'waste' grounds possible with Rent Controller order.
Tribal sells to non-tribal in Scheduled Area	VOID under SALTR 1959 Reg.1. No limitation. Tribal can recover at any time. RDO restores land.
IX Schedule law (2009) — challenge?	Can be challenged — post-24 April 1973. Only on basic structure grounds. Property rights alone insufficient. Practice: courts very reluctant to strike down land reform laws.

Memory Mnemonics

- Assigned Land: 3-4-5 Rule → S.3 = Prohibition, S.4 = Resumption, S.5 = Penalty. All transfers VOID. Dharani FREEZES assigned land.

- LGA 1982: LAMP test → Lawful Authority = no? → Motive irrelevant → Any person including parties → Punish with 7 yrs. Special Court = District Judge.
- SALTR: VOID + NO LIMIT → Scheduled Area + Tribal → Non-tribal = VOID always + No limitation period for recovery.
- Board of Revenue hierarchy: VRO→MRO→RDO→Collector→BoR→HC. Revenue courts = records/tenancy/mutation. Civil courts = TITLE.
- Tenant's rights: TPA S.108(h) — improvements allowed if no permanent diminishment of value. Overhead tank = improvement = OK. Structural damage = waste = eviction ground.
- Restricted Lands A-S-F-G-C-E: Assigned + Scheduled Area + FRA title + Government + Ceiling surplus + Endowment. All transfers = VOID.

⚠ Trap Questions — Watch Out!

- TRAP: 'Assigned land purchaser with registered deed has good title' — FALSE. S.3 makes ALL assigned land transfers void. Registration = irrelevant. Purchaser gets NOTHING.
- TRAP: 'Political party distributing land to poor cannot be prosecuted' — FALSE. Good motive irrelevant under LGA 1982. Lawful authority at time of possession is the ONLY test.
- TRAP: 'Tenant can NEVER make any structural addition' — FALSE. TPA S.108(h) allows improvements not permanently diminishing value. Overhead tank = reasonable necessity = allowed.
- TRAP: 'Board of Revenue can decide title disputes' — FALSE. Board of Revenue has NO jurisdiction over title disputes. Title = Civil Court only.
- TRAP: 'Long occupation of government waste land creates rights' — FALSE (mostly). Mere duration of occupation does not create title to government land. No adverse possession against government under general rule.
- TRAP: 'Eviction from waste land requires court order only' — FALSE. Eviction can be ordered by Collector/RDO under Revenue Acts or by Special Court under LGA 1982 — not necessarily a civil court.



COMPLETE SERIES — ALL 5 UNITS AT A GLANCE

Use this master summary for final revision before the exam.

UNIT I — Ownership & Classification	Eminent Domain (P-C-A), Bona Vacantia, Escheat, Land Records, Patta, Dharani, Torrens. Art 300-A. Eminent Domain for commercial use = only with LARR consent.
UNIT II — Pre/Post Independence Reforms	Zamindari (Cornwallis 1793), Ryotwari (Munro 1820s), Mahalwari (Mackenzie 1822). 3 phases: A-T-C. SALTR = tribal→non-tribal = VOID always. Protected tenant = 6 years.
UNIT III — Acquisition & R&R	LARR 2013 procedure: S-S-C-P-O-D-M-A-P-R-L. Consent: 80% (pvt co), 70% (PPP). Compensation = $MV \times 4x + 100\%$ solatium+annuity. S.24 lapse = 5 years. LARRA = reference forum.
UNIT IV — Ceilings & Forest Rights	Ceiling = 1 SH = 54 acres dry. FRA 2006 = 4H/13D/75Y/Gram Sabha. IX Schedule: PRE-1973=absolute; POST-1973=basic structure review. Arts 38, 39(b)(c) = normative basis.
UNIT V — Alienation & Dispute Resolution	Assigned land = VOID transfer (S.3). LGA 1982 = motive irrelevant. SALTR = void+no limitation. BoR = apex revenue court, no title jurisdiction. Special Court = LGA enforcement (District Judge).